



Medicines Act 1971

1971 CHAPTER 69

An Act to make further provision as to the fees payable for the purposes of Part II of the Medicines Act 1968.
[5th August 1971]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Ministers may with the consent of the Treasury Fees. make regulations providing—

- (a) for the payment and recovery of such fees as are prescribed by the regulations in connection with any application in pursuance of the Medicines Act 1968 (hereafter in this 1968 c. 67. Act referred to as “the principal Act”) for a licence, certificate or direction under Part II of that Act or for the variation or renewal of such a licence or certificate;
- (b) for the payment of any such fee by instalments, and for the refund of the whole or part of any such fee, in such cases as may be determined by or under the regulations;

and the regulations may include provision in respect of any such application made before the passing of this Act but after 30th June 1971.

(2) The Ministers may also make regulations—

- (a) providing that subsection (5) or subsection (6) of section 27 of the principal Act (which among other things provides, in connection with an application for a licence of right, that that Act shall have effect in certain circumstances as if the licence had been granted), or either of those subsections as applied by any other provision of the principal Act, shall not apply in relation to an application while there remains unpaid a sum due by way of or on account of a fee payable by virtue of this section in respect of the application;

- (b) providing for the suspension of any licence or certificate under Part II of the principal Act while there remains unpaid a sum due by way of or on account of a fee payable by virtue of this section in respect of the licence or certificate.

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(3) Expressions used in this section and the principal Act as amended by the Transfer of Functions (Wales) Order 1969 have the same meanings in this section as in that Act as so amended; and the following provisions of that Act, that is to say—

- (a) subsections (1), (6) and (7) of section 128 (which among other things provide for the payment, out of money provided by Parliament and into the Consolidated Fund respectively, of the expenses and receipts of the Ministers in consequence of that Act);
- (b) subsections (2), (3)(c), (5) and (6) of section 129 (which provide for regulations under that Act to be subject to annulment and contain other supplementary provisions relating to such regulations); and
- (c) paragraphs 6, 8 and 11 of Schedule 4 (which relates to Northern Ireland),

shall have effect as if any reference to that Act (except the second reference in the said paragraph 6) included a reference to this section.

(4) Subsection (3) of section 128 of the principal Act (which authorises the charging of fees in connection with applications under Part II of that Act) is hereby repealed; but any regulations in force by virtue of that subsection immediately before the passing of this Act shall have effect thereafter as if made under this section.

Citation
and extent.

2.—(1) This Act may be cited as the Medicines Act 1971, and this Act and the principal Act may be cited together as the Medicines Acts 1968 and 1971.

(2) This Act extends to Northern Ireland.